

Brussels, April 13 – The EDPB has made a decision on resolving disputes based on Article 65 of the General Data Protection Regulation regarding the draft decision of the Irish Data Protection Authority on the lawfulness of data transfers to the United States by Meta Platforms Ireland Limited (Meta IE) for its Facebook service. The binding decision addresses important legal issues arising from the draft decision of the Irish Data Protection Authority as the lead supervisory authority concerning Meta IE. The binding decision of the European Data Protection Board plays a crucial role in ensuring the proper and consistent application of the General Data Protection Regulation by national data protection authorities.

Since consensus was not reached on the objections raised by several data protection authorities, the European Data Protection Board was called upon to resolve the dispute between the data protection authorities within two months.

More specifically, the EDPB in its binding decision addresses the dispute regarding whether the final decision of the Irish Data Protection Authority should include an administrative monetary penalty and/or an additional order for compliance with processing.

The lead supervisory authority will make its final decision, addressed to the data controller, based on the binding decision of the EDPB, taking into account the legal assessment of the European Data Protection Board, no later than one month after the EDPB has communicated its decision. The European Data Protection Board will publish its decision on its website after the lead supervisory authority has notified the data controller of its national decision.

Members of the European Data Protection Board discussed recent measures taken by the Italian Data Protection Authority against the data controller Open AI concerning the Chat GPT service. The European Data Protection Board decided to establish a special working group to promote cooperation and the exchange of information on possible enforcement measures undertaken by data protection authorities.